

allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend.' [Citation omitted.]" (*Id.* [quoting *Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139, fn. 2].) The allegations cited above and others made in the complaint adequately apprise Defendants of the issues Defendants are being asked to defend.

Defendants have not shown that the complaint as alleged and properly construed as a non-PAGA, non-representative action is uncertain. The special demurrer to the complaint in its entirety for uncertainty is **overruled**.

16. 9:00 AM CASE NUMBER: MSC21-01215
CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH
RELIEF FROM SANCTIONS
FILED BY: WESTBROOK, LYNETTA

TENTATIVE RULING:

This motion is was withdrawn by Plaintiff. No appearance is required at the August 12, 2026 hearing.

17. 9:00 AM CASE NUMBER: MSC21-02445
CASE NAME: NIST VS FARRELL
TO BE RELIEVED AS COUNSEL RE: ATTORNEY DEVON M. THURTLAND ANDERSON
FILED BY:

TENTATIVE RULING:

Summary

Counsel Devon Thurtle Andersen ("Withdrawing Counsel") filed a Motion to Be Relieved as Counsel for Cross-Defendant Daniel Jensen ("Motion"). The Motion is **continued** to August 19, 2026 at 9:00 p.m. Withdrawing Counsel is ordered to file and serve a Declaration in support of Motion to Withdraw that is complete.

Background

On May 20, 2026, Withdrawing Counsel filed the following Declaration in Support of Motion to Withdraw as Counsel, which appears to only contain the following statement:

(This Attachment may be used with any Judicial Council form.)

~~9/30/2026 at 9:01 am - Hearing on Motion for Discovery re: Compel Further Responses to Plain Interrogatories and Admissions, Set 2.~~

Nothing else is attached. The Court presumes that this is an administrative filing error and is without information to make a decision on Withdrawing Counsel's Motion.

Ruling

1. This motion is continued to August 19, 2026 at 9:00 a.m.

2. Withdrawing Counsel shall file and serve an updated Declaration in Support of Motion to be Relieved as Counsel no later than August 14, 2026.
3. Notice is given that the Hon. Charles Steve Treat, sitting on temporary assignment, will be presiding over the law and motion calendar on August 19, 2026.

18. 9:00 AM CASE NUMBER: N25-1803

CASE NAME: CLAIM OF:NOAH BINSOL

***HEARING ON MINOR'S COMPROMISE RE NOAH BINSOL**

FILED BY: BINSOL, JASON

TENTATIVE RULING:

Summary

Petitioner Jason Binsol's Petition for Approval of Compromise of Minor Noah Binson ("Minor") Claim is granted, as set forth below. No appearance is required at the hearing on August 12, 2026.

Background

On September 10, 2025 Petitioner Jason Binsol, parent and guardian ad litem for his child, Minor, filed the Petition through counsel, Thomas Morgan, to compromise the claim that Minor had against Nicholas Rogers Martin, Jr. related to an accident that occurred on State Route 4 in Antioch, CA on October 8, 2024. In that accident, Minor sustained soft tissue injuries. He has fully recovered and there are no permanent injuries.

Geico Insurance Company offered settlement in the amount of \$11,658.99, of which \$ 7,694.25 is to be paid to Petitioner behalf of Minor to be placed into a blocked account. The deduction of \$3,964.74 represents a negotiated deduction from the settlement, is used to satisfy any liens for medical expenses and to pay for attorney's fees incurred. Petitioner prepared a proposed order to deposit funds into a blocked account for the benefit of the Minor.

Analysis

A Petition for Minor's Compromise is a mandatory legal procedure in California required to settle any legal claim or lawsuit belonging to a minor child. Under state law, minors lack the legal capacity to sign binding contracts or settlement releases, meaning court approval is required to finalize the settlement and secure the proceeds.

California Probate Code §§ 3500–3613 provides the primary framework for the procedure and disposition of settlement funds. Probate Code Section 3500 grants a parent or guardian the authority to compromise a minor's claim before a lawsuit is filed. Probate Code Sections 3600–3613 regulate how the court must distribute and protect the settlement proceeds. If applicable, California Code of Civil Procedure (CCP) §§ 372–376 governs minors who are already active parties in a pending civil lawsuit. CCP § 372 mandates that a minor must appear via a Guardian Ad Litem (GAL) or a guardian of the estate to execute a compromise.

Lastly, California Rules of Court (CRC), Rules 7.950–7.955: Outlines specific pleading rules, disclosure mandates, attorney fee structures, and the protocols for placing funds into blocked bank account. This Court is required to review the Petition for Approval of Compromise of Claim or Action.